

Killing of Nurul Amin Shah Alam

Nurul Amin Shah Alam (January 1, 1970–February 24, 2026)^[1] was a nearly blind 56-year-old Rohingya refugee who died after United States Border Patrol agents dropped him off on the streets of Buffalo, New York on the night of February 19, 2026. Shah Alam was left at a closed Tim Hortons coffee shop in near-freezing temperatures. He was found dead on February 24. The county medical examiner found his death resulted from complications brought on by hypothermia and dehydration and ruled his death a homicide on April 1, 2026, which means it resulted from another person's actions or inaction but is not a court judgement nor a determination that it was a crime.

Killing of Nurul Amin Shah Alam	
Date	February 19–24, 2026
Location	Perry Street, <u>Buffalo, New York</u>
Deaths	1
Involved agency	<u>United States Border Patrol</u>

Background

Originally from Myanmar, Shah Alam and his family fled to Bangladesh for two years in the 1990s,^[2] and after being subjected to forced labor he fled to Malaysia in 2002. He worked in construction and was later joined by his family, but they lacked the documents to gain Malaysian citizenship.^{[3][4]} He came to the United States with his wife and two of his children in December 2024 "in search of opportunity for his family".^[4] The family are Arakan Rohingya^[5] and have legal refugee status.^[4] He couldn't understand English, had trouble walking^[6] and used a cane.^{[4][7]} His son told Reuters Shah Alam did not read, write, or use electronics.^[5] After eyesight and knee problems in recent years,^[8] he was nearly blind;^{[5][9]} his attorney told *Investigative Post*, a local news nonprofit, that he was completely blind in one eye and had blurry vision for several feet in the other.^[10]

On February 15, 2025, Shah Alam was arrested by Buffalo police. According to police documents, Shah Alam "unlawfully entered a fenced rear yard" while holding "two long black poles," caused an estimated \$200 damage to a shed door, and allowed the owner's dog to escape through an open gate.^[1] Police body camera footage shows police officers repeatedly telling him to drop the poles to the ground^[11] and him repeatedly saying "sorry"^[12] (or "OK sorry").^[8] WGRZ reports that Shah Alam waves eventually waves the poles in the air in the direction of the officer, and the police fire their tasers, tackle him to the ground, and handcuff him;^[11] the BBC reports that when Shah Alam does not drop the rods after repeated requests, the officers deploy tasers and he walks forward swinging the rods until an officer wrestles him to the ground.^[12] According to police documents, Shah Alam bites both officers in the struggle.^[1] Afterwards, the officers are unable to communicate with him because of the language barrier.^[11] According to *The Washington Post*, speaking in Rohingya and Malay he asks for God's help, tries to explain he lives nearby and was going to the store, and pleads with the officers not to throw away his phone. The only English words he speaks are "OK", as well as "I love you" which he sings from the back of an ambulance as he is taken to Erie County Medical Center.^[11]

He was charged with two counts^[1] of felony assault and eight lesser charges,^[13] listed in police records as two counts of menacing in the second degree with a weapon, two counts of criminal possession of weapon with intent to use, criminal trespass in the third degree, criminal mischief, resisting arrest, and obstructing governmental administration in the second degree.^[1]

According to Shah Alam's family, the event was a misunderstanding; Shah Alam had become lost, was using a curtain rod as a walking stick, and did not respond to police because he did not understand English.^[5] He was held at the Erie County Holding Center awaiting trial for the next year. According to the family's attorney, the family did not post bail during this time because they were afraid that if they did, Shah Alam would be released to Immigration and Customs Enforcement (ICE) and deported from the country.^[14] In February 2026 Shah Alam pled guilty a misdemeanor plea deal, which would have made him ineligible for removal by ICE, according to Erie County District Attorney Michael J. Keane.^{[7][14]} Advised by a lawyer that it was safe, his family posted bail.^[8] ICE had issued an immigration detainer, a formal request to take custody of a noncitizen after his release from criminal detention, so the sheriff's office contacted Border Patrol,^[15] who arrived before his release was finalized.^[7]

Killing

According to reports received by the Buffalo Police Department, Shah Alam was released from Erie County Holding Center to federal authorities on February 19, 2026 around 4:30 pm.^[1] Border Patrol detained him briefly before determining he was not eligible for deportation.^[16] According to a federal official Border Patrol attempted to communicate with Shah Alan using a translator program, and he was offered the opportunity to make a phone call, which he declined, and asked to be taken to the location where he was eventually dropped off.^[8] United States Customs and Border Protection (CBP) later told media that Shah Alam chose to accept a "courtesy ride" to a Tim Hortons in the Black Rock neighborhood, rather than be directly released from the holding center, and was released at what was "determined to be a warm, safe location near his last known address" and "showed no signs of distress, mobility issues or disabilities requiring special assistance".^[7]

Surveillance footage shows Shah Alam being brought out of the Border Patrol van around 8:18 pm, when only the drive-thru was open. The footage shows him pacing in front of the locked doors, and eventually walking through the parking lot away from the building.^[17]

Shah Alam's family and attorney weren't notified of his release.^{[16][2]} His son had been waiting outside the jail to take him home, and his wife had set his clothes out for him.^[6] His family and lawyer began a search for him which included the neighborhood Shah Alam lived in when he was detained, and the federal detention center in Batavia, where it was thought ICE may have been detaining him.^[14] Shah Alam's family no longer lived at their old address or that part of the city but in East Side, several miles away.^[18] While he was missing, temperatures fell from nearly freezing^[8] to below freezing and light snow fell.^[4] Shah Alam had thin^[6] county-issued jail booties for shoes.^[16]

Shah Alam's attorney reported him missing to police on February 22, after learning an area immigration detention center didn't have him in custody.^[9] Special Victims Unit detective Richard Hy opened an investigation on February 23.^[19] He closed the investigation around noon after

"information was obtained that led the detective to believe that the missing person was in the custody of federal authorities" and reopened it later that afternoon. Police learned on February 24 where Shah Alam had been dropped off, and outreach to family and neighbors and searches of shelters, hospitals, and the general area were carried out.^[1] At 8:29 pm on February 24, a woman placed a 911 call reporting an unmoving man on Perry Street, a six and a half mile drive away from the Tim Horton's,^[4] after seeing him alive there earlier that day around 5:30 pm; the man, identified as Shah Alam on February 25, was pronounced deceased by authorities on scene.^[1]

Shah Alam's funeral was held at a local mosque, Masjid Zakariya, on February 26, 2026.^[7] At the time, the New York Medical Examiner's Office had not released its final report regarding his cause of death.^[20] On April 1, the Erie County Medical Examiner reported that they had determined that the cause of death was due to complications from an ulcer that resulted from hypothermia and dehydration and that the manner of death was homicide.^[21]

Reactions

Buffalo Mayor Sean M. Ryan called the death "deeply disturbing and a dereliction of duty by the U.S. Customs and Border Protection". Ryan said that "U.S. Customs and Border Protection must answer for how and why this happened".^[22] and noted that had Border Patrol taken Shah Alam back to the holding center, they could have obtained phone numbers for his son and lawyer, both of whom had been active visitors. Ryan used Shah Alan's death to argue for his recent city policy instructing the Buffalo police department not to cooperate with the United States Department of Homeland Security (DHS), the Border Patrol's and ICE's parent agency, in matters of civil immigration enforcement.^[23] The Buffalo Police Department announced an investigation into Shah Alam's death.^[7]

New York Governor Kathy Hochul^[4] and congressman Tim Kennedy (26th district) both called for a full investigation.^{[24][25]} New York Attorney General Letitia James made a statement in which she said her office "is reviewing our legal options".^[7] Erie County executive Mark Poloncarz said "This should not have happened" in a news conference.^[26] Responses from other elected officials calling for accountability in the incident included U.S. senators Chuck Schumer and Kirsten Gillibrand,^[9] and U.S. representative Grace Meng.^[27]

Shah Alam's funeral was followed by a procession, and a gathering to honor him and show support for his family.^[28] Two days later, on February 28, a protest called Rally for Justice was held at Niagara Square in front of Buffalo City Hall. Demonstrators called for a transparent investigation of the actions of Border Patrol and Erie County Sheriff's Office and advocated for the passage of the New York for All Act, which would prevent local governments or law enforcement from directly supporting federal agencies conducting civil immigration enforcement activities.^[29] Signs referenced Shah Alam in the local March 2026 No Kings protest.^[30]

At a Senate Judiciary Committee oversight hearing on March 3, California senator Alex Padilla accused Kristi Noem, the Secretary of Homeland Security, of lying about the case and told Noem that she should resign, the president should fire her, or that the senate should impeach her.^[31] On March 4, during a House Judiciary Committee oversight hearing New York representative Jerry Nadler and

Maryland representative Jamie Raskin questioned and criticized Noem over the department's handling of the case. Separately, Tim Kennedy called for Noem to investigate the events surrounding Shah Alam's death on the house floor.^[31]

Governor Hochul met with Shah Alam's widow, Fatimah Abdul-Roshid, who asked for help reunifying with her sons who were in Malaysia. Hochul subsequently met with border czar Tom Homan to advocate for the request.^[32] Hochul also put pressure on the legislature to quickly pass a proposed law that would provide a basis for New Yorkers to sue federal agents who violate their constitutional rights.^{[33][32]}

In response, CBP^{[12][34]} and DHS^{[35][36]} announced "This death had NOTHING to do with Border Patrol" as "Mr. Shah Alam passed almost A WEEK AFTER he was released by Border Patrol". They called his case "another hoax being peddled by the media and sanctuary politicians to demonise our law enforcement." DHS went on to blame representative Nadler for pushing a hoax and add that Shah Alam "also had a serial violent criminal rap sheet", listing the charges from his arrest.^{[35][36]}

DHS also drew attention to how Shah Alam had accepted a courtesy ride, "a ride that did not have to be provided."^{[8][37]} DHS asked: "Would the Washington Post have rather us force him to find transportation from the station after his arrest by local police?"^[37] CNN cited an immigration attorney as saying courtesy rides are not uncommon, and that agents are supposed to make sure the drop-off location is safe and determine if the person needs any accommodations.^[8]

Investigations

On March 6, New York Attorney General Letitia James responded to representative Tim Kennedy's request to investigate the case.^[32] Erie County Sheriff's Office indicated that they were complying with requests from James's office to provide documentation regarding the case while the Buffalo Police Department and Erie County District Attorney's Office both stated they were assisting in the investigation.^[32]

On March 31, the Erie County Medical Examiner's Office determined Shah Alam died of "complications of a perforated duodenal ulcer precipitated by hypothermia and dehydration," and that the death was a homicide, clarifying that homicide indicated the death was the result of the action or inaction of others but did not imply intent to cause harm or death. A manner of death ruling for the purpose of vital statistics is not a legal one, nor does it indicate a crime was committed: that responsibility belongs to legal system. The family was notified and a public statement was made on April 1.^[21]

See also

- Deaths, detentions and deportations of American citizens in the second Trump administration
- List of deaths in ICE detention
- Killing of Geraldo Lunas Campos
- Killing of Alex Pretti

- [Killing of Renée Good](#)
- [Killing of Silverio Villegas González](#)
- [Shooting of Marimar Martinez](#)
- [Starlight tours](#)

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Mr. Shah Alam's criminal history included charges for assaulting a first responder with intent to cause injury, criminal possession of a weapon, menacing with a weapon, resisting arrest, criminal trespass, and obstructing governmental administration" (<https://x.com/DHSGov/status/2039694948216238313>) (Tweet). Retrieved April 21, 2026 – via X (formerly Twitter).

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Mr. Shah Alam passed almost A WEEK AFTER [...]" (<https://x.com/DHSGov/status/2029234682391404823>) (Tweet). Retrieved April 21, 2026 – via X (formerly Twitter).

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This individual accepted a courtesy ride from Border Patrol to this location, a ride that did not have to be provided.

Would the Washington Post have rather us force him to find transportation from the station after his arrest by local police?

This individual tragically died almost a week after this courtesy ride. It is ridiculous to blame Border Patrol for an individual's death a week after their last interaction with them" (<https://x.com/DHSGov/status/2027453843538399655>) (Tweet). Retrieved April 24, 2026 – via X (formerly Twitter).

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